

26STCV08973 26STCV08973

County: los-angeles

Division: Civil Law and Motion

Department: 534

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Case Number: 26STCV08973 Hearing Date: September 17, 2026 Dept: 534

Background of 26STCV08973 Nicolay v.

Envision EDH MB Auto

On March 20, 2026, Plaintiff Wesley Nicolay sued Envision EDH MB Auto, LLC, Envision Motors Holdings, LLC, and Michael Marquez arising out of Plaintiff's employment as a Finance Manager. The First Amended Complaint, filed June 10, 2026, asserts causes of action for:

1.

Sexual Harassment in Violation of Gov. Code § 12940(j);

2.

Discrimination Based on Sex in Violation of Gov. Code § 12940(a);

3.

Discrimination Based on Race in Violation of Gov. Code § 12940(a);

4.

Harassment Based on Race in Violation of Gov. Code § 12940(j);

5.

Harassment Based on Perceived Sexual Orientation in Violation of Gov. Code § 12940(j);

6.

Retaliation in Violation of Gov. Code § 12940(h);

7.

Failure to Prevent Discrimination and Harassment in Violation of Gov. Code § 12940(k);

8.

Violation of Labor Code Section 1102.5;

9.

Sexual Battery – Civ. Code §1708.5;

10.

Assault;

11.

Battery;

12.

Negligent Hiring, Retention, and Supervision; and

13.

Intentional Infliction of Emotional Distress.

The

FAC alleges Defendant Marquez served as Nicolay's supervisor between March 2024 and August 2024 and "subjected PLAINTIFF to a relentless campaign of physical and verbal sexual harassment, homophobic harassment, and racial harassment that created an intolerable and hostile work environment." (FAC ¶ 9.)

On August

6, 2026, Judge Karine Mkrtchyan issued a minute order finding 26STCV08973 and 26STCV08987 were not related within the meaning of California Rules of Court, Rule 3.300(a).

This

case is currently assigned to Department 512 of the Stanley Mosk Courthouse.

Background of 26STCV08987 Shaker v. Envision EDH MB Auto

On

March 20, 2026, Plaintiff Ahmad Shaker sued Envision EDH MB Auto, LLC, Envision Motors Holdings, LLC, and Michael

Marquez arising out of Plaintiff's employment as a Sales Manager. The First Amended Complaint, filed June 10, 2026, asserts causes of action for:

1.

Discrimination Based on Race/National Origin in Violation of Gov. Code § 12940(a);

2.

Discrimination Based on National Origin in Violation of Gov. Code § 12940(a);

3.

Discrimination Based on Religion in Violation of Gov. Code § 12940(a);

4.

Discrimination Based on Sex in Violation of Gov. Code § 12940(a);

5.

Discrimination Based on Disability in Violation of Gov. Code § 12940(a);

6.

Harassment Based on Race in Violation of Gov. Code § 12940(j);

7.

Harassment Based on National Origin in Violation of Gov. Code § 12940(j);

8.

Harassment Based on Religion in Violation of Gov. Code § 12940(j);

9.

Sexual Harassment in Violation of Gov. Code § 12940(j);

10.

Harassment Based on Perceived Sexual Orientation in Violation of Gov. Code § 12940(j);

11.

Retaliation in Violation of Gov. Code § 12940(h) ;

12.

Failure to Prevent Discrimination, Harassment, and Retaliation in Violation of

Gov. Code § 12940(k);

13.

Violation of Labor Code Section 1102.5;

14.

Negligent Hiring, Retention, and Supervision;

15.

Sexual Battery – Violation of Cal. Civ. Code § 1708.5;

16.

Assault;

17.

Battery;

18.

Intentional Infliction of Emotional Distress; and

19.

Wrongful Termination in Violation of Public Policy

The

FAC alleges Defendant Marquez served as Shaker's supervisor, who subjected Shaker "to a relentless, severe, and pervasive campaign of harassment, discrimination, physical assault, and retaliation." (Shaker FAC ¶ 9.)

Motion

On

August 20, 2026, Defendants Envision EDH MB Auto, LLC, Envision Motors Holdings, LLC, and Michael Marquez filed the instant motion seeking to relate 26STCV08973 and 26STCV08987.

The

request for judicial notice of various filings in both actions is GRANTED. (Evid. Code § 452(d).)

Motion

to Relate Cases

Standard

Pursuant

to Superior Court of Los Angeles County Local Rules, rule 3.3(f)(3), “[i]n the event that the judge designated under California Rules of Court, rule 3.300(h)(1)(A)(B)(C) to make the decision, does not order related any of the cases set forth in the Notice of Related Cases, any party may file a motion to have the cases related. Department 1 [renumbered as of May 4, 2026, Department 534] shall hear the motion, if the cases are all pending in the Central District or are pending in two or more different districts.” The Court does not address the merits when ruling on a Notice of Related Case.

The

Court Shall Relate the Cases at Issue

On

August 6, 2026, Judge Karine Mkrtchyan issued a minute order finding 26STCV08973 and 26STCV08987 were not related within the meaning of California Rules of Court, Rule 3.300(a). The motion is therefore properly before Department 534. (SCLAC Local Rules, rule 3.3(f)(3); Cal. R. Ct., rule 3.300(h)(1)(D).)

Cases

are related when they (1) involve the same parties and are based on the same or similar claims, (2) arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of law or fact, (3) involve claims against, title to, possession of, or damages to the same property, or (4) are likely for other reasons to require substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a).) Chatmon contends the cases are related based upon the first, second, and third grounds enumerated in Rule 3.300(a). The oppositions argue the cases should not be related.

As

seen above, the cases do not involve the same parties. (Cal. R. Ct., rule 3.300(a)(1).) However, the cases do arise from the same or substantially identical transactions, incidents, or events requiring the determination of the same or substantially identical questions of

law or fact, (Cal. R. Ct., rule 3.300(a)(2)), and are likely to require a substantial duplication of judicial resources if heard by different judges. (Cal. R. Ct., rule 3.300(a)(4).)

The two pleadings allege shared interactions that serve as the basis for Plaintiffs' claims including, an alleged battery on both Plaintiffs, (Nicolay FAC ¶ 13; Shaker FAC ¶ 262), a meeting wherein both Plaintiffs shared their grievances to management regarding Defendant Marquez, (Nicolay FAC ¶ 26), an alleged fraudulent vehicle deal blamed on both Plaintiffs, (Nicolay FAC ¶ 37; Shaker FAC ¶ 50), and a meeting wherein Defendant Marquez allegedly threatened Plaintiffs. (Nicolay FAC ¶¶ 40-41; Shaker FAC ¶ 56.) Additionally, both cases assert causes of action for failure to prevent harassment and negligent hiring based on Defendant Marquez's conduct. Having a single judicial officer preside over the entirety of the disputes regarding Marquez's alleged conduct promotes judicial efficiency and decreases the potential for conflicting rulings. (Harris v. Rojas (2021) 66 Cal.App.5th 817, 820 ("The notice allows the trial court to promote efficiency, to avoid duplicative effort, to combat judge-shopping, and to minimize the prospect of conflicting results.").)

The Court finds the cases are related within the meaning of California Rules of Court, rule 3.300.

The motion is GRANTED.

Conclusion

Defendants' Motion to Relate Cases is GRANTED.

The Court relates 26STCV08973 and 26STCV08987 and orders 26STCV08987 reassigned to Department 512 of the Stanley Mosk Courthouse for all purposes.

All hearings currently set in 26STCV08987 are hereby advanced and vacated.

Counsel

for Chatmon to give notice.